

through the court-martial's imposition of the death sentence.

The retroactivity of *Furman* is equally unclouded. The Court "[has] not hesitated" to give full retroactive effect to the *Furman* decision. *Robinson v. Neil*, 409 U. S. 505, 508 (1973). See *Stewart v. Massachusetts*, 408 U. S. 845 (1972); *Marks v. Louisiana*, 408 U. S. 933 (1972); *Walker v. Georgia*, 408 U. S. 936 (1972). The *per curiam* decision struck down both "the imposition and the carrying out" of discretionary death sentences as cruel and unusual punishment in violation of the Eighth Amendment. 408 U. S., at 239. The opinion specifically held that the "judgment . . . is . . . reversed insofar as it leaves undisturbed the death sentence imposed . . ." *Id.*, at 240. The retroactive application of *Furman* results in more than the simple enjoining of execution; it nullifies the very act of sentencing. In effect a post-*Furman* court must ensure a prisoner the same treatment that he would have been afforded had the death penalty not been imposed initially.⁴

The full retroactivity of a constitutional ruling is aimed at the eradication of all adverse consequences of prior violations of that rule. We have recognized the importance of erasing "root and branch" the adverse legal consequences, both direct and indirect, of prior constitutional violations. See, e. g., *McConnell v. Rhay*, 393 U. S. 2, 3 (1968); *Linkletter v. Walker*, 381 U. S. 618, 639 (1965). The effective operation of this procedure was demon-

⁴ Where only one alternative punishment is available to the trial court, that punishment has been automatically imposed either by the appellate court itself, e. g., *State v. Johnson*, 31 Ohio St. 2d 106, 285 N. E. 2d 751 (1972); *Commonwealth v. Bradley*, 449 Pa. 19, 295 A.2d 842 (1972); *Anderson v. State*, 267 So. 2d 8, 10 (Fla. 1972); or by the trial judge on direction from the appellate court, e. g., *Capler v. State*, 268 So. 2d 338 (Miss. 1972); *State v. Square*, 263 La. 291, 268 So. 2d 229 (1972); *Garcia v. State*, 501 P. 2d 1128 (Okla. Crim. 1972).